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CASE #	CASE NAME	HEARING NAME
CVPS2507816	BANK OF AMERICA N.A. VS BATAc	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF BANK OF AMERICA N.A. BY BANK OF AMERICA N.A.

Tentative Ruling: Plaintiff Bank of America, N.A.'s unopposed motion for judgment on the pleadings is GRANTED.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges a cause of action for breach of contract. This cause of action requires plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Maria Cindy Batac's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a card to defendant and providing monthly statements; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$13,021.22. Defendant admits as much in her answer. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.